Miami County Common Pleas Court
07/21/2023 04:28 PM
Shawn M. Peeples
Clerk of Courts

IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
CIVIL DIVISION

DANIELLE BAKER,	:	CASE NO. 23 CV 117
	:	
Plaintiff	:	JUDGE JEANNINE N. PRATT
	:	
vs.	:	DEFENDANT, OHIO'S HOSPICE, INC.'S REPLY IN SUPPORT OF ITS MOTION TO DEEM MATTERS ADMITTED FOR FAILURE TO RESPOND
OHIO'S HOSPICE, INC., ET AL.,	:	
Defendants.	:	

Now comes Defendant, Ohio's Hospice, Inc. ("Hospice"), by and through the undersigned counsel, and hereby submits the following Reply in Support of its Motion to Deem Matters Admitted for Failure to Respond.

REPLY

I. FACTUAL BACKGROUND

Hospice served Plaintiff with Defendant's First Set Interrogatories, Request for Production of Documents and/or Things, and Requests for Admissions on June 13, 2023. Pursuant to Civil Rule 36, Plaintiff's responses to Defendant's Request for Admissions ("Requests") were due by July 11, 2023. Because Plaintiff did not respond to the Requests by July 11, 2023 they were automatically deemed admitted as of July 12. Civ. R. 36(A). Plaintiff did not request additional time to respond to the Requests on or before the July 11 deadline to respond.

On July 12, after the Requests were deemed admitted, the undersigned counsel contacted Plaintiff's counsel, Attorney James E. Gardner, to (1) inform him that the Requests were automatically deemed admitted and (2) to inquire about the status of Plaintiff's responses to the outstanding Interrogatories and Request for Production of Documents. Exhibit A. Mr. Gardner responded on July 12, 2023 indicating that he was "working on having the discovery requests completed as soon as possible. Unfortunately, Ms. Baker has been ill as of late, but it is my hope that a formal extension will not be needed." Exhibit B. Mr. Gardner did not address the Requests or the fact that the Requests were automatically deemed admitted due to Baker's failure to respond by July 11.

On July 13, 2023, despite the fact Mr. Gardner did not request an extension or give an expected timeline on when discovery will be produced, the undersigned offered a brief extension to respond to the Interrogatories and Request for Production of Documents but also once again informed Mr. Gardner that the Requests were automatically admitted. Exhibit C. On July 13, 2023, Hospice also filed its Motion to Deem Matters Admitted for Failure to Respond ("Motion").

On July 14, 2023 Attorney Thomas Reitz of Larrimer & Larrimer filed a Notice of Substitution of Counsel for Attorney Gardner. The Notice stated that all future notices and pleadings should be directed to Mr. Reitz. Attorney Gardner has not filed a Motion to Withdraw as required by Local Rule 5.06.

Despite the filing of a Notice of Substitution of Counsel, on July 18, 2023, Attorney Gardner filed Plaintiff, Danielle Baker's ("Baker") Response to Defendant, Ohio's Hospice Inc.'s Motion to Deem Matters Admitted for Failure to Respond ("Response") and a Notice of Leave to Plead for Plaintiff-Appellant Danielle Baker. In Baker's Response, she appears to make two

arguments. First, she argues that Hospice's Motion is premature. Second, she implies that her physical condition and the substitution of counsel constitute "extraordinary circumstance" warranting an unspecified amount of extra time to Baker to respond to discovery. Notably, Baker has still not responded to the Requests as of the date of this filing. For the reasons outlined below, both of Baker's arguments should be rejected and Hospice's Motion should be granted.

II. ARGUMENT

A. Hospice's Motion is Not Premature.

Because Civil Rule 36 automatically converted the Requests into Admissions, Hospice's Motion was timely filed after the expiration of the July 11 deadline. "Civ. R. 36 requires that when requests for admissions are filed by a party, the opposing party must timely respond either by objection or answer. Failure to respond at all to the requests will result in the requests becoming admissions. Under compelling circumstances, the court may allow untimely replies to avoid the admissions." *Cleveland Trust Co. v. Willis*, 20 Ohio St.3d 66, 67, 485 N.E.2d 1052 (1985). The Rule places a party's conscious choice to ignore request for admissions "on the same plane as the conscious choice to admit them." *Cleveland Trust Co. v. Firestone Bank*, 9th Dist. Summit Nos. 11595 and 11599, 1984 Ohio App. LEXIS 11426, *8 (Sept. 27, 1984).

The Court has "repeatedly held that Civ.R. 36 is 'self-enforcing' and that the 'trial court has no discretion whether to deem the matters admitted. If the requests are not answered, they are admitted and conclusively established, and the trial court must recognize them as so.'" *Bank of America, N.A. v. Shailer*, 2d Dist. Montgomery No. 29036, 2021-Ohio-3939, ¶26.

Baker's failure to respond to the Requests on or before July 11 resulted in the Requests becoming admissions. Before the July 11 deadline, Baker did not seek an extension of time to respond to the Requests or give any indication that she was having difficulty responding to the

Requests. Baker's after-the-fact indication that she needed additional time is akin to requesting a postponement of trial after the jury renders its verdict, i.e. too little too late.

There is no current dispute regarding the outstanding Interrogatories and Requests for Production of Documents. Hospice granted Baker an extension to respond to the Interrogatories and Requests for Production of Documents, and Hospice did not request Court intervention concerning those outstanding issues. The only issue in Hospice's Motion is the Requests. Because the Requests were automatically converted into admissions pursuant to Civ.R. 36, Hospice's Motion was timely filed.

B. Baker's Alleged Physical Limitations and Retention of New Legal Counsel Do Not Constitute Extraordinary Circumstances.

During the 28 days following service of the Requests, Baker did not move for a protective order or otherwise request relief from her duty to respond to the Requests. Baker did not contact counsel for Hospice until after the July 11 deadline to respond to the Requests and only after receiving correspondence stating the Requests were automatically deemed admitted.

Extensions of time are usually granted on a showing of good cause "if timely made under the Civil Rules." *Cleveland Trust Co. v. Willis*, 20 Ohio St.3d at 67-8. While Civ.R. 36 does not require a party to demonstrate compelling circumstances for failing to timely respond to a request for admissions, the trial court may still consider whether there is a justifiable excuse for the failure when considering the culpability of the party that failed to respond. *Cottrill v. Noah's Transportation, LLC*, 2d Dist. Miami No. 2014-CA-2, 2014-Ohio-2098, ¶10.

In *Cleveland Trust*, the appellant suggested that illness prevented his timely response. *Cleveland Trust Co,* 20 Ohio St.3d at 67. However, the appellant did not move for a protective order or otherwise request relief from the duty of responding to the requests for admissions. *Id.*

Under those circumstances, the Court could "not see how [appellant's] illness presented a substantial reason for not responding earlier." *Id.* at 68.

Like the appellant in *Cleveland Trust*, Baker suggests that illness prevented her timely response. Like the appellant in *Cleveland Trust*, Baker also failed to move for a protective order or request relief from the duty of responding to the Requests until after her deadline expired. Therefore, like the appellant in *Cleveland Trust*, Baker's alleged illness does not present a reason for not timely responding to the Requests.

Notably, it does not appear Attorney Gardner sent the Requests to Baker so her physical ability to respond to them is irrelevant. Exhibit D. The June 14, 2023 letter attached to Baker's Response only references Hospice's First Set of Interrogatories. *Id.* There is no mention of the Requests. Further, because Attorney Gardner represented Baker at both hearings before the Industrial Commission, he is familiar with her case and should be able to respond to most (if not all) of the Requests without Baker's assistance. Exhibits E and F.

The hospitalization referenced in Baker's Response occurred in April, two months before Hospice's Requests were even served. Her June 9 neurologist appointment also occurred before the Requests were served. Baker provides no explanation why these visits prevented her from responding to the Requests by July 11.

Attorney Gardner notes he was not aware of Baker's health issues until July 12, the day after Baker's deadline to respond to the Requests. At that point, however, the Requests were already converted to admissions. There is nothing that suggests Baker's hospitalization in April or her doctor's visit on June 9 prevented her from contacting her attorney about the pending Requests served June 13. There is no evidence that the April hospitalization or June office visit prevented Baker from requesting additional time before the expiration of her July 11 deadline.

Baker's counsel was certainly aware of the deadline and did not raise any concerns about Baker's status until after July 11 expired.

Baker also suggests that the Requests should not be deemed admitted because she retained new counsel. This argument is a red herring. Baker did not retain new legal counsel until after the Requests were automatically deemed admitted pursuant to Civ.R. 36. This is once again analogous to requesting a postponement of trial because a party retained a new attorney the day after the jury returned its verdict, i.e. too little too late.

C. Baker's Admissions Do Not Prevent Her from Presenting the Merits of Her Case.

"There is a two-prong test for determining whether a trial court may allow a withdrawal or an amendment to a previous admission." *Crespo v. Harvey*, 2d Dist. Montgomery No. 25861, 2014-Ohio-1775, ¶10. The first prong of the test requires the party seeking to amend or withdraw the admission to show that doing so would aid in presenting the merits of the case. *Id.* Once that prong is met, the responding party must show that prejudice would result if the admissions were withdrawn or amended. *Id.*

Baker does not allege that her admissions to the Requests prevent her from presenting her case. While she provides implied reasons why she failed to timely respond to the Requests, she does not cite to a single one of the Requests that prevents her from presenting her case. She also does not point to a single Request that is not true. Therefore, there is no evidence that Baker is prejudiced by her admissions to the Requests.

Because Baker fails to meet the first prong of the test, there is no need to address the second prong of the test. Assuming arguendo that Baker met the first prong, Hospice is prejudiced by Baker's withdrawal of her admissions. The Requests concerning the condition(s) raised at the Industrial Commission pertain to the jurisdiction of the Court. Baker failed to identify what

specific medical condition(s) she is seeking in this case. Rather, her Complaint contains only a generic request to participate "in the benefits of the Workers' Compensation Act of Ohio." Hospice cannot build a defense to this case without knowing what condition(s) Baker is seeking. Similarly, Hospice should not be required to depose Baker to obtain the simple background information in the Requests. Therefore, Baker should not be allowed to withdraw her admissions and the Requests should be deemed admitted.

III. CONCLUSION

Baker was obligated to respond to the Requests on or before July 11, 2023. If she was not able to respond to the Requests on or before July 11, 2023, she could have (and should have) requested a reasonable extension of her deadline. Baker's failure to respond to the Requests and failure to make a timely request for an extension resulted in the Requests becoming admissions on July 12. Because the Requests automatically converted to admissions on July 12, Hospice's Motion was timely filed. Baker's after-the-fact allegations concerning her physical condition and retention of new counsel do not excuse her failure to timely respond to the Requests or to make a timely request for an extension. Further, Baker's admissions do not prevent her from presenting her case. Therefore, Hospice's Motion should be granted and all the Requests should be deemed admitted by the Court.

Respectfully submitted,

COOLIDGE WALL CO., L.P.A.

By: */s/ Joshua R. Lounsbury*

David C. Korte (0019382)
Michelle D. Bach (0065313)
Joshua R. Lounsbury (0078175)
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Dayton, OH 45402
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bach@coollaw.com
lounsbury@coollaw.com

ATTORNEYS FOR DEFENDANT,
OHIO'S HOSPICE, INC.

CERTIFICATE OF SERVICE

I hereby certify that on July 21, 2023, a copy of the foregoing Defendant, Ohio's Hospice, Inc.'s Reply in Support of its Motion to Deem Matters Admitted for Failure to Respond was filed electronically. Notice of this filing will be sent to all parties by operation of the Court's ECF System and copies will be mailed via U.S. Mail to those parties to whom electronic notice has not been sent. Parties may access the filing through the Court's system.

/s/ Joshua R. Lounsbury
Joshua R. Lounsbury (0078175)

w:\wdox\client\012064\00957\01388592.docx

Jonas J. Gruenberg
Merle F. Wilberding
J. Stephen Herbert
R. Scott Blackburn
Sam Warwar
Terence L. Fague
Richard A. Talda
David C. Korte
Stephen M. McHugh
Douglas M. Ventura
Kristin A. Finch
David P. Pierce
Shannon L. Costello
Christopher R. Conard
Marc L. Fleischauer
Michelle D. Bach
Gregory M. Ewers
Daniel J. Gentry
Chad D. Hansen
R. Michael Osborn
Patricia J. Friesinger
Joshua R. Lounsbury
Michael G. Leesman
W. Chip Herin III
Jeffrey A. Winwood
Lu Ann Stanley
Tino M. Monaldo
Edie E. Crump
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Patrick Martin
Benjamin A. Mazer
Robert D. Ballinger
Zachary B. White
Ashley E. Warwar
Elliott V. Haller
Kara T. Ruffolo
Sarah J. Sparks

J. Bradford Coolidge
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Hugh E. Wall, Jr.
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July 12, 2023

VIA EMAIL

James E. Gardner, Esq.
1653 Merriman Road, Suite 108
Akron, OH 44313

Re: Danielle L. Baker vs. Ohio's Hospice Inc., et al.
Miami County Court of Common Pleas, Case No. 23-117

Dear Mr. Gardner:

On June 13, 2023, my office served Defendant, Ohio's Hospice, Inc.'s First Request for Admissions Directed to Plaintiff. Service was completed to you on June 13 by email. Pursuant to Civil Rule 36, all of the Request for Admissions are admitted because you did not provide written answers and/or objections to the Request for Admission within the 28-days allowed by the Rule.

In addition to the First Request for Admissions, my office served Ohio's Hospice Inc.'s First Set of Interrogatories and Request for Production of Documents Directed to Plaintiff on June 13, 2023. The deadline to respond to those requests was July 11. To date, we have not received Ms. Baker's discovery responses. Please advise me regarding the status of the discovery responses and when I can expect to receive them. Thank you.

Very truly yours,

Joshua R. Lounsbury

Joshua R. Lounsbury, Esq.

Cc: Michelle D. Bach, Esq.
Julie Gunter

EXHIBIT
A

Julie A. Gunter

From: James Gardner <gardnerlaw@sbcglobal.net>
Sent: Wednesday, July 12, 2023 3:14 PM
To: Joshua R. Lounsbury
Subject: Re: Baker vs. Ohio's Hospice, Inc., et al.
Attachments: HospiceBaker Letter to Attorney Gardner re admissions and status of claimant's discovery responses.pdf

Mr. Lounsbury-

We are working on having the discovery requests completed as soon as possible.

Unfortunately, Ms. Baker has been ill as of late, but it is my hope that a formal extension will not be needed.

Thank you,

Jim Gardner

This email and any documents attached to this email contain legally privileged and confidential information. This information is intended only for the use of the individuals/entities to whom it was meant to be addressed. Any dissemination, distribution or copy of this information is strictly prohibited. If you have received this e-mail in error, please immediately notify the sender listed above and delete this email and any attachments. Thank you.

On Wednesday, July 12, 2023 at 01:14:07 PM EDT, Joshua R. Lounsbury <lounsbury@coollaw.com> wrote:

Mr. Gardner,

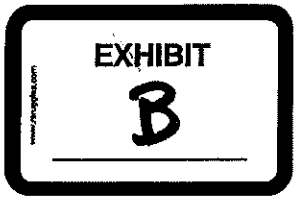
I am following up on my client's discovery requests, which were served June 13, 2023. Please see attached correspondence regarding same.

Thank you,

Josh Lounsbury

From: Julie A. Gunter
Sent: Tuesday, June 13, 2023 1:58 PM
To: 'gardnerlaw@sbcglobal.net' <gardnerlaw@sbcglobal.net>
Cc: 'Barbara Barber' <Barbara.Barber@OhioAGO.gov>; Michelle D. Bach <Bach@coollaw.com>; David C. Korte <Korte@coollaw.com>; Joshua R. Lounsbury <Lounsbury@coollaw.com>
Subject: Baker vs. Ohio's Hospice, Inc., et al.

Mr. Gardner,



Julie A. Gunter

From:	Joshua R. Lounsbury
Sent:	Friday, July 14, 2023 12:38 PM
To:	James Gardner
Cc:	Michelle D. Bach; David C. Korte; Julie A. Gunter
Subject:	RE: Baker vs. Ohio's Hospice, Inc., et al.
Attachments:	Defendant, Ohio's Hospice, Inc.'s Motion to Deem Matters Admitted for Failure to Respond (01387056xA06A8).pdf; Order Granting Defendant, Ohio's Hospice, Inc.'s Motion to Deem Matters Admitted for Failure to Respond (01386965xA06A8).pdf

Mr. Gardner,

I have no objection to a short extension of your deadline to respond to the interrogatories and request for production of documents. As I mentioned in my letter, however, the Request for Admissions were deemed automatically admitted pursuant to Rule 36. My office filed a motion today asking the Court to deem the matters admitted pursuant to the Civil Rules. (see attached)

Josh Lounsbury

From: James Gardner <gardnerlaw@sbcglobal.net>
Sent: Wednesday, July 12, 2023 12:14 PM
To: Joshua R. Lounsbury <Lounsbury@coollaw.com>
Subject: Re: Baker vs. Ohio's Hospice, Inc., et al.

Mr. Lounsbury-

We are working on having the discovery requests completed as soon as possible.

Unfortunately, Ms. Baker has been ill as of late, but it is my hope that a formal extension will not be needed.

Thank you,

Jim Gardner

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I am following up on my client's discovery requests, which were served June 13, 2023. Please see attached correspondence regarding same.



Thank you,

Josh Lounsbury

From: Julie A. Gunter
Sent: Tuesday, June 13, 2023 1:58 PM
To: 'gardnerlaw@sbcglobal.net' <gardnerlaw@sbcglobal.net>
Cc: 'Barbara Barber' <Barbara.Barber@OhioAGO.gov>; Michelle D. Bach <Bach@coollaw.com>; David C. Korte <Korte@coollaw.com>; Joshua R. Lounsbury <Lounsbury@coollaw.com>
Subject: Baker vs. Ohio's Hospice, Inc., et al.

Mr. Gardner,

Attached you will find Ohio's Hospice, Inc.'s First Set of Interrogatories, First Request for Production of Documents and/or Things, and First Requests for Admissions Directed to Plaintiff.

Thank you,

Julie

Julie A. Gunter

Paralegal

Coolidge Wall Co., L.P.A.

33 West First Street, Suite 200

Dayton, Ohio 45402-1289

gunter@coollaw.com

Tel: 937.223.8177

Fax: 937.223.6705

DID: 937.449.5551

GARDNERLAW

James E. Gardner
Attorney-at-Law
Also licensed in Texas

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1653 Merriman Road,
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Akron, Ohio 44313
www.gardnerlawwc.com

June 14, 2023

Ms. Danielle Baker
808 Caribou Court
Piqua, Ohio 45356

RE: Danielle Baker vs. Ohio Hospice, Inc., et al.
Case No.: 23 CV 117

Dear Ms. Baker:

Enclosed please find Defendant, Danielle Baker vs. Ohio Hospice, Inc., et al., First set of Interrogatories with respect to the above matter. Please complete to the best of your ability, have the verification page notarized with your signature, sign any/all please highlighted and return to our office as soon as possible.

We look forward to being of assistance to you on this matter. Thank you.

Very truly yours,

James E. Gardner

Enclosure

EXHIBIT
D

Ohio Industrial Commission

RECORD OF PROCEEDINGS

Claim Number: 22-155661 Claims Heard: 22-155661
MO-ACC-SI-COV
PCN: 2222091 Danielle L. Baker

DANIELLE L. BAKER
808 CARIBOU CT
PIQUA OH 45356-5499

Date of Injury: 7/17/2021 Risk Number: 20005682-0

This claim has been previously contested.

This matter was heard on 09/28/2022 before District Hearing Officer Amanda Porterfield pursuant to the provisions of R.C. Sections 4121.34 and 4123.511 on the following:

FROI-1 First Report Of An Injury, OD Or Death filed by Claimant on 07/02/2022.
Issue: 1) Injury Or Occupational Disease Allowance

Notices were mailed to the Claimant, the Employer, their respective representatives and the Administrator of the Bureau of Workers' Compensation not less than 14 days prior to this date, and the following were present for the hearing:

APPEARANCE FOR THE CLAIMANT: Mr. Gardner (by webex), Ms. Baker (by webex), Ms. Johnson (by webex)
APPEARANCE FOR THE EMPLOYER: Ms. Bach, Ms. Huffman (court reporter)
APPEARANCE FOR THE ADMINISTRATOR: No Appearance

The Claimant voluntarily waived the right to appear in person for today's hearing.

It is the order of the District Hearing Officer that the Claimant's FROI-1 First Report of an Injury, Occupational Disease or Death, filed 07/02/2022, is denied.

It is the order of the District Hearing Officer that the claim is **DISALLOWED** in its entirety.

The District Hearing Officer finds that the Claimant has failed to sustain her burden of proving an injury in the course of and arising out of her employment on or about 07/17/2021.

At hearing, the Claimant requested the claim be allowed for the condition of transverse myelitis on the basis that it developed as a complication of a covid-19 infection sustained by the Claimant in approximately December 2020, in the alternative that it developed as a complication of a covid-19 vaccination the Claimant received in June of 2021, or that it was a development of both the covid-19 infection and the covid-19 vaccination.

The District Hearing Officer finds insufficient evidence of a covid-19 infection causally related to the Claimant's employment in December 2020, nor is there sufficient evidence to support that the covid-19 vaccination the Claimant received in June 2021 was causally related to her employment.

At hearing, the Claimant testified that she received her two covid-19 vaccinations on 06/04/2021 and 06/26/2021. The Claimant testified that she felt she needed to get her vaccination because the Employer sent an email in May 2021, filed 08/11/2022, which encouraged employees to get vaccinated and indicated that paid leave would no longer be offered for employees with covid-19



infections or vaccine reactions after 07/01/2021. The District Hearing Officer does not find evidence within the email, or the electronic claim file, that the covid-19 vaccination was mandated by the Employer. The Claimant further testified that she knew the vaccination was not mandatory and that her continued employment was not conditioned upon receiving the vaccination.

The report of Steven Wunder, M.D., dated 09/13/2022, opines that there is insufficient evidence to support the requested condition and the Claimant's symptoms as causally related to her employment.

This finding is based on the reasoning set forth above; and the report of Dr. Wunder, dated 09/13/2022.

The Self-Insuring Employer is hereby ordered to comply with the above findings.

All of the evidence was reviewed and considered in rendering this decision.

An IC-12 Notice of Appeal from this order may be filed within 14 days of the receipt of the order. The IC-12 may be filed online at www.ic.ohio.gov or the IC-12 may be sent to the Industrial Commission of Ohio, Dayton District Office, 1242 E Dayton-Yellow Springs Rd, Fairborn, OH 45324-6326.

Typed By: ap
Date Typed: 10/03/2022

Amanda Porterfield
District Hearing Officer

Notice of Contested Claim: 07/19/2022
Findings Mailed: 10/06/2022

Electronically signed by
Amanda Porterfield

The parties and representatives listed below have been sent this record of proceedings. If you are not an authorized representative of one of the parties, please notify the Industrial Commission.

22-155661
Danielle L. Baker
808 Caribou Ct
Piqua OH 45356-5499

Risk No: 20005682-0
Ohio's Hospice Inc
7575 Paragon Rd
Dayton OH 45459-5316

ID No: 16521-90
Gardner,James E
1653 Merriman Rd Ste 108
Akron OH 44313-5279

ID No: 1220-80
Hunter Consulting
6600 Clough Pike Fl 2
Cincinnati OH 45244-4041

ID No: 21264-91
Coolidge, Wall, Womsley & Assoc
33 W 1st St Ste 600
Dayton OH 45402-1289

BWC, LAW DIRECTOR

NOTE: INJURED WORKERS, EMPLOYERS, AND THEIR AUTHORIZED REPRESENTATIVES MAY REVIEW THEIR ACTIVE CLAIMS INFORMATION THROUGH THE INDUSTRIAL COMMISSION WEB SITE AT www.ic.ohio.gov. ONCE ON THE HOME PAGE OF THE WEB SITE, PLEASE CLICK ICON AND FOLLOW THE INSTRUCTIONS FOR OBTAINING A PASSWORD. ONCE YOU HAVE OBTAINED A PASSWORD, YOU SHOULD BE ABLE TO ACCESS YOUR ACTIVE CLAIM(S).

An Equal Opportunity Employer
and Service Provider

Ohio Industrial Commission

RECORD OF PROCEEDINGS

Claim Number: 22-155661 Claims Heard: 22-155661
MO-ACC-SI-COV
PCN: 2222091 Danielle L. Baker

DANIELLE L. BAKER
808 CARIBOU CT
PIQUA OH 45356-5499

Date of Injury: 7/17/2021 Risk Number: 20005682-0

This claim has been previously **disallowed.**

This matter was heard on 01/20/2023 before Staff Hearing Officer John Tomassi pursuant to the provisions of R.C. Sections 4121.35(B) and 4123.511(D) on the following:

APPEAL of District Hearing Officer order from the hearing dated 09/28/2022, filed by Claimant on 10/13/2022.
Issue: 1) Injury Or Occupational Disease Allowance

Notices were mailed to the Claimant, the Employer, their respective representatives and the Administrator of the Bureau of Workers' Compensation not less than 14 days prior to this date, and the following were present for the hearing:

APPEARANCE FOR THE CLAIMANT: Ms. Baker, Mr. Gardner, Mr. Baker
APPEARANCE FOR THE EMPLOYER: Ms. Bach
APPEARANCE FOR THE ADMINISTRATOR: No Appearance

The order of the District Hearing Officer, issued 10/06/2022, is affirmed.

It is the order of the Staff Hearing Officer that the FROI-1 First Report of Injury, Occupational Disease or Death Application, filed 07/02/2022, is denied.

The Staff Hearing Officer finds the Claimant has not met her burden of proving by a preponderance of the evidence that she sustained an injury or contracted an occupational disease in the course of and arising out of her employment with the Employer on or about 07/17/2021.

Therefore, it is ordered that this claim is specifically **DISALLOWED.**

This decision is based on the medical reports of Steven Wunder, M.D., dated 09/13/2022, 11/04/2022 and 01/12/2023.

The Self-Insuring Employer is hereby ordered to comply with the above findings.

All evidence was reviewed and considered in rendering this decision.

An IC-12 Notice of Appeal from this order may be filed within 14 days of the receipt of the order. The IC-12 Notice of Appeal may be filed online at www.ic.ohio.gov or the IC-12 Notice of Appeal may be sent to the Industrial Commission, Dayton District Office, 1242 E Dayton-Yellow Springs Rd, Fairborn, OH 45324-6326.



Ohio Industrial Commission

RECORD OF PROCEEDINGS

Claim Number: 22-155661

Typed By: cr
Date Typed: 01/20/2023

Findings Mailed: 01/25/2023

John Tomassi
Staff Hearing Officer

Electronically signed by
John Tomassi

The parties and representatives listed below have been sent this record of proceedings. If you are not an authorized representative of one of the parties, please notify the Industrial Commission.

22-155661
Danielle L. Baker
808 Caribou Ct
Piqua OH 45356-5499

Risk No: 20005682-0
Ohio's Hospice Inc
7575 Paragon Rd
Dayton OH 45459-5316

ID No: 16521-90
Gardner,James E
1653 Merriman Rd Ste 108
Akron OH 44313-5279

ID No: 1220-80
Hunter Consulting
6600 Clough Pike Fl 2
Cincinnati OH 45244-4041

ID No: 21264-91
Coolidge, Wall, Womsley & Assoc
33 W 1st St Ste 600
Dayton OH 45402-1289

BWC, LAW DIRECTOR

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